

****Postal Address:****

Box 8114

104 20 Stockholm

Website:

www.imy.se

Email:

imy@imy.se

Phone:

08-657 61 00

1(8)

****Lensway Group AB****

****Decision following supervision according to the Data Protection Regulation - Lensway Group AB****

****Decision of the Swedish Authority for Privacy Protection****

The Swedish Authority for Privacy Protection finds that Lensway Group AB, in handling the deletion requests made on February 20, 2020, by the complainant in complaint 1, and on June 25, 2020, by the complainant in complaint 2, has processed personal data in violation of:

- Article 12.6 of the Data Protection Regulation by requesting a copy of an identity document and signature when this was not necessary to confirm the identities of the complainants, and
- Article 12.2 of the Data Protection Regulation by requiring the complainants, when requesting deletion, to submit information to confirm their identities via postal mail, which did not facilitate the complainants' exercise of their right to deletion.

The Swedish Authority for Privacy Protection issues a reprimand to Lensway Group AB under Article 58.2 b of the Data Protection Regulation for violations of Articles 12.2 and 12.6 of the Data Protection Regulation.

****Account of the supervisory case****

****Processing****

The Swedish Authority for Privacy Protection (IMY) has initiated supervision regarding Lensway Group AB (the company) due to two complaints, primarily to investigate whether Lensway Group AB has received and handled the complainants' deletion requests correctly according to Articles 12 and 17 of the Data Protection Regulation. The complaints have been forwarded to IMY, in its capacity as the responsible supervisory authority under Article 56 of the Data Protection Regulation. The transfer has occurred from the supervisory authorities in the countries where the complainants have submitted their complaints (Finland and Denmark) in accordance with the regulation's provisions on cooperation in cross-border processing.

1 EUROPAPARLAMENTETS OCH RÅDETS FÖRORDNING (EU) 2016/679 av den 27 april 2016 om skydd för fysiska personer med avseende på behandling av personuppgifter och om det fria flödet av sådana uppgifter och om upphävande av direktiv 95/46/EG (allmän dataskyddsförordning).

Case Number:

IMY-2022-1032

Date:

2023-01-19

Case Number:

IMY-2022-1032

Date:

2023-01-19

****Swedish Authority for Privacy Protection****

Case Number: IMY-2022-1032

2(8)

Date: 2023-01-19

The processing at IMY has occurred through written correspondence. Given that this involves

cross-border processing, IMY has utilized the mechanisms for cooperation and consistency found in Chapter VII of the Data Protection Regulation. The relevant supervisory authorities have been the data protection authorities in Denmark, Norway, and Finland.

****The Complaints****

The complaints mainly state the following.

****Complaint 1**** (Complaint from Finland with national case number 1576/153/2020)

The complainant contacted the company on February 20, 2020, and requested deletion. The company responded to the complainant that he needed to send his postal address to them so that they could send documents regarding his request to him. These documents would need to be signed and returned by the complainant. Furthermore, the company requested that the complainant verify his identity by sending a copy of his identity document via email. For security reasons, the complainant has not been willing to provide what was requested of him.

****Complaint 2**** (Complaint from Denmark with national case number 2020-31-3616)

The complainant has requested deletion of his information on lensway.dk. To accommodate the request, the company has asked him to provide his social security number and submit a copy of his identity document. However, the company cannot tell the complainant why they need this information other than that they need it to confirm his identity. The complainant questions why the company needs to collect personal data to delete personal data. The complainant suggested that the company could instead confirm his identity by sending an email to the address registered to him, but they refused.

****What the Company has Stated****

The company has stated in responses dated April 20, May 12, and August 11, 2022, the following. The company is the data controller for the processing related to the complaints.

****Complaint 1****

The company has received the complainant's request for deletion, but the complainant has not completed the company's then-applicable verification process. The company has requested that the complainant send a copy of his identity document. This is the only way the company has been able to ensure the customer's identity so far. The copy was to be sent via regular postal mail. The company has also requested that the complainant submit a signed request for deletion. The company has not been able to receive this information digitally so far. To ensure that they have received the original documents, they have asked the complainant to send this via regular postal mail.

****Complaint 2****

The company received the request for deletion on June 25, 2020, but the complainant has not completed the company's then-applicable verification process. It is true that the company requested the complainant's social security number in the written documentation, but it has been voluntary to provide this information. In addition to the information in the written documentation, the company has requested that the complainant submit a copy of his identity document. The company has not been able to identify the complainant in any other way so far.

Integrity Protection Authority

Diary Number: IMY-2022-1032

3(8)

Date: 2023-01-19

The complainant has been asked to submit the information via regular postal service to ensure that the company receives the documents in original form.

Regarding both complaints, the company has stated the following:

Concerning the written request that both complainants were to submit, the company states the following regarding which personal data were mandatory to provide and why the information was necessary.

- Name is a mandatory piece of information requested to confirm the identity of the registered individual.
- Email address is a mandatory piece of information requested as it is used as a unique identifier for

customers in the company's system.

- Signature is a mandatory piece of information so that the company can ensure that the registered individual has read through the information and given their consent.

The company asserts that they must always ensure that it is the correct person contacting them when it comes to requests to exercise a right under the General Data Protection Regulation (GDPR). Since the company has previously been unable to identify the customer in a good and secure manner when they contacted the company via customer service, the manual process via regular postal service has been the method they have used. In this way, they have achieved a two-step verification. Functionality to enable confirmation of the customer's identity via customer service has not been in place.

The customer relationship with the company can be established in two ways: either the customer makes a purchase or the customer logs into My Pages. When the customer creates an account on My Pages, they enter their email address, and a confirmation email is sent to the customer. The customer can then use the link in the email to access a webpage where they link a password to the email address. The customer account is then created, and the company thus achieves a two-step verification. The complainants have used the second method through which the customer relationship can be established.

The complainants have made purchases from the company and have been identified via the company's payment service provided by Klarna. For most payment options, Klarna requires the customer to verify themselves via BankID. For certain payment methods, such as credit card payments, the customer can choose not to verify themselves via BankID through Klarna's app.

The company's existing digital contact method is My Pages. However, there has not been any functionality to handle requests to exercise a right under the General Data Protection Regulation on My Pages. Since April 2022, the company's customers can now request to be deleted or receive a copy of their personal data directly via My Pages. The customer's identity is then verified through regular login.

Justification of the decision

Applicable provisions, etc.

According to Article 17.1, the data subject shall have the right to have their personal data erased by the data controller without undue delay, and the data controller shall be obliged to erase personal data without undue delay if any of the conditions listed in the article are met, for example, if the data is no longer needed.

Swedish Authority for Privacy Protection

Diary Number: IMY-2022-1032

4(8)

Date: 2023-01-19

longer than necessary for the purposes for which they were collected or if consent for processing is revoked.

According to Article 12.2, the data controller shall facilitate the exercise of the rights of the data subject in accordance with Articles 15–22.

Article 12.6 states that without affecting the application of Article 11, the data controller, if it has reasonable grounds to doubt the identity of the individual making a request under Articles 15–21, may request that additional information necessary to confirm the identity of the data subject be provided.

In the European Data Protection Board (EDPB) Guidelines 01/2022 on access, among other things, the following is stated.

65. If the data controller requests additional information necessary to confirm the identity of the data subject, the data controller shall assess each time what information will enable it to confirm the identity of the data subject and may possibly ask additional questions to the requesting person or request the data subject to provide additional identification details, if it is proportionate (see section 3.3). Such additional information should not be more than the information initially needed to verify the identity of the data subject (authentication). In general, the fact that the data controller may request additional

information to assess the identity of the data subject cannot lead to excessive demands and to the collection of personal data that are not relevant or necessary to strengthen the link between the individual and the personal data requested.

[...]

73. It should be emphasized that using a copy of an identity document as part of the authentication process poses a risk to the security of personal data and may lead to unauthorized or unlawful processing, and therefore should be considered inappropriate unless it is absolutely necessary, suitable, and in accordance with national legislation. In such cases, data controllers should have systems in place that ensure a level of security appropriate to mitigate the higher risks to the data subject's freedoms and rights in receiving such data. It is also important to note that identification using an identity card does not necessarily assist in online contexts (e.g., when using pseudonyms) if the individual concerned cannot provide any other evidence, such as additional characteristics that match the user account.

2 EDPB, Guidelines 01/2022 on data subject rights - Right of access, Version 1.0 (EDPB's Guidelines 01/2022 on the right of access). The guidelines have been out for public consultation and are awaiting final adoption.

3 IMY's translation, original: In cases where the controller requests the provision of additional information necessary to confirm the identity of the data subject, the controller shall each time assess what information will allow it to confirm the data subject's identity and possibly ask additional questions to the requesting person or request the data subject to present some additional identification elements, if it is proportionate (see section 3.3). Such additional information should not be more than the information initially needed for the verification of the data subject's identity (authentication). In general, the fact that the controller may request additional information to assess the data subject's identity cannot lead to excessive demands and to the collection of personal data which are not relevant or necessary to strengthen the link between the individual and the personal data requested.

4 IMY's translation, original: It should be emphasised that using a copy of an identity document as a part of the authentication process creates a risk for the security of personal data and may lead to unauthorised or unlawful processing, and as such it should be considered inappropriate, unless it is strictly necessary, suitable, and in line with national law. In such cases the controllers should have systems in place that ensure a level of security appropriate to

Swedish Authority for Privacy Protection

Diary Number: IMY-2022-1032

5(8)

Date: 2023-01-19

Assessment by the Swedish Authority for Privacy Protection

IMY has, based on the relevant complaints in the case, reviewed the company's actions in these two individual cases.

Has the company acted in accordance with Article 12.6 of the General Data Protection Regulation when the company requested relevant information from the complainants?

Has Lensway Group had reasonable grounds to doubt the identity of the complainants?

It is only when the data controller has reasonable grounds to doubt the identity of the person making the request that further information to confirm the identity may be requested. What constitutes "reasonable grounds" in Article 12.6 of the General Data Protection Regulation should be assessed based on the circumstances of the individual case. The assessment of whether there are reasonable grounds to doubt the identity of the requester is normally made against the background of the information provided in connection with the request. This is particularly true in situations where the data controller lacks further knowledge of this person. However, the requirement for an individual assessment does not preclude the establishment of procedures for how the data controller normally verifies the identity of the data subject.

The company has been given the opportunity to justify what individual assessment has been made based on the complainants' situation if they believed they had reasonable grounds to doubt the identity

of the complainants when they submitted their requests. Regarding both complainants, the company has primarily stated the following. The company should always ensure that it is the right person contacting them when it comes to requests to exercise a right under the General Data Protection Regulation. The customer has not previously been able to be identified in a good and secure manner when they contacted the company via Customer Service. Functionality for handling requests to exercise a right under the General Data Protection Regulation has neither existed at Customer Service nor on My Pages.

IMY notes that the investigation in the case does not clearly indicate what information the complainants provided in connection with their request and whether, based on this, there was reason for the company to doubt their identity. However, IMY believes that, in light of what has emerged in the case, there is no reason to question the company's assertion that it had reason to doubt the identity of the complainants. In its assessment, IMY takes into account the fact that the obligation to ensure the identity of the requester also aims to protect data subjects from someone else incorrectly making requests in their name, which can lead to negative consequences for the data subject. The risks of these negative consequences in the case of false requests are particularly evident when it comes to more intrusive measures, such as exercising the right to erasure. Therefore, IMY finds that it has not been demonstrated otherwise than that the company in the relevant cases had reasonable grounds to doubt the identity of the complainants.

Have the data requested by Lensway Group been necessary to confirm the identity of the complainants?

Even if the data controller has reasonable grounds to doubt the identity of the complainants, the data controller should not collect more personal data than is necessary to enable the identification of the requesting data subject.

Mitigate the higher risks for the rights and freedoms of the data subject to receive such data. It is also important to note that identification by means of an identity card does not necessarily help in the online context (e.g., with the use of pseudonyms) if the person concerned cannot contribute any other evidence, e.g., further characteristics matching to the user account.

Integritetsskyddsmyndigheten

Diarienummer: IMY-2022-1032

6(8)

Datum: 2023-01-19

The company has primarily stated the following regarding the necessity of the information they have requested from both complainants. A copy of an identification document has been requested as it was the only way the company has been able to ensure the customer's identity so far. In addition to a copy of the identification document, the complainants were to submit a written basis. The information requested in the written basis and why it has been necessary is primarily explained by the company as follows. The name has been requested to confirm the identity of the registered individual. The email address has been requested as it is used as a unique identifier of customers in the company's system. The signature has also been requested and is, according to the company, a necessary piece of information for the company to ensure that the registered individual has read through the information and given their consent to the handling of the request.

Regarding whether the identities of the complainants have been verified, the company has stated that both complainants have made purchases where they have been identified via the company's payment service provided by Klarna.

From the company's statement, it appears that it was not required for the company to verify the complainants' true identities when the customer relationship was established, i.e., at the time of purchase. IMY notes that the company cannot require more personal data when the complainant wishes to exercise their rights than what was required at the establishment of the customer relationship. A copy of the identification document and signature are such pieces of information that the company did not request at the establishment of the customer relationship in these two specific cases. Furthermore, IMY considers that according to the EDPB's guidelines on the right of access, the

use of a copy of an identification document as part of the authentication process should be deemed inappropriate unless it is absolutely necessary, appropriate, and in accordance with national legislation. IMY believes that the requirement to provide the data controller with a copy of their identification document is an intrusive measure, which is only appropriate when the data controller has previously ensured the actual identity of the registered individual and when alternative, less intrusive verification methods are inappropriate. IMY assesses that there have been no circumstances indicating that other, less intrusive, verification methods could have been used in the specific cases, such as logging in via "Mina Sidor" or control questions. IMY concludes that it has not been established in the case that the request for a copy of the identification document or the signature would have been absolutely necessary or appropriate.

In light of this, IMY assesses that the copy of the identification document and the signature cannot be considered necessary to confirm the identities of the complainants in accordance with Article 12.6 of the General Data Protection Regulation.

Has the company acted in accordance with Article 12.2 of the General Data Protection Regulation when it requested that the complainants send the information by regular mail?

The next question is whether it has been permissible to require that the complainants send the requested information to the company via regular mail.

In light of the requirements to facilitate the exercise of the registered individual's rights in Article 12.2 of the General Data Protection Regulation, it can only be accepted in exceptional cases that a data controller refers individuals to regular mail as the only means of contact if they must submit information to ensure their identities, for example, if it is justifiable for security reasons. The starting point should be that alternative ways to submit the requested information should be offered. The company has in...

Swedish Authority for Privacy Protection

Case Number: IMY-2022-1032

7(8)

Date: 2023-01-19

This part essentially states that they have required that the information be sent via regular mail to ensure that they have received the written documentation in original form.

IMY assesses that sending a copy of an identity document may indeed involve specific risks that could justify the requirement for the document to be sent by mail. This is provided that it is a necessary task to confirm the identity of the data subject.

In the relevant cases, IMY assesses above that a copy of the identity document was not necessary to confirm the identity of the complainants. By requiring the complainants to also send the information via regular mail, IMY believes that the company has not facilitated the complainants' exercise of their right to erasure. IMY thus assesses that the company has acted in violation of Article 12.2 of the General Data Protection Regulation.

Choice of Intervention

According to Articles 58.2 and 83.2 of the General Data Protection Regulation, IMY has the authority to impose administrative fines in accordance with Article 83. Depending on the circumstances of the individual case, administrative fines may be imposed in addition to or instead of the other measures referred to in Article 58.2, such as orders and prohibitions. Furthermore, Article 83.2 outlines the factors to be considered when deciding whether administrative fines should be imposed and when determining the amount of the fine. If it concerns a minor infringement, IMY may, as stated in Recital 148, instead of imposing a fine, issue a reprimand in accordance with Article 58.2 b. Consideration should be given to aggravating and mitigating circumstances in the case, such as the nature, severity, and duration of the infringement, as well as previous relevant infringements.

IMY notes the following relevant circumstances. The investigation in the matter has revealed that a copy of the identity document and signature is no longer requested by Lensway Group AB when registered individuals request to exercise their right to erasure under the General Data Protection Regulation. Furthermore, the identified infringements occurred relatively long ago (2020) and have affected two registered individuals. Against this background, IMY finds that this concerns minor

infringements in the sense referred to in Recital 148, which means that Lensway Group AB should be given a reprimand in accordance with Article 58.2 b of the General Data Protection Regulation for the identified infringements.

This decision has been made by the designated decision-maker, lawyer Evelin Palmér, after presentation by lawyer Anna Mlynska.

Evelin Palmér, 2023-01-19 (This is an electronic signature)

Swedish Authority for Privacy Protection

Case Number: IMY-2022-1032

8(8)

Date: 2023-01-19

How to Appeal

If you wish to appeal the decision, you should write to the Swedish Authority for Privacy Protection. Indicate in the letter which decision you are appealing and the amendment you are requesting. The appeal must be received by the Swedish Authority for Privacy Protection no later than three weeks from the day you were notified of the decision. If the appeal is submitted in a timely manner, the Swedish Authority for Privacy Protection will forward it to the Administrative Court in Stockholm for review.

You may email the appeal to the Swedish Authority for Privacy Protection if it does not contain any privacy-sensitive personal data or information that may be subject to confidentiality. The authority's contact details are provided on the first page of the decision.